

THE WORKPLACE, IN ADMITTED FACTS

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator

Every sentence in **black** is the text of a fact **admitted by the Respondent on 8 September 2026** in answer to the notice to admit facts served on 28 August 2026, reproduced word for word, with its number in the notice shown in brackets. The admissions are made for this proceeding only, under rule 49 of the *Industrial Relations (Tribunals) Rules 2011*. **Words in red are joining words only. They are not evidence, they are not admitted, and nothing turns on them.** No word of the Appellant's own account appears in this document.

I. THE POSITION

The document at Annexure A, Tab 1 is a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03". ^[1] That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". ^[13] That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". ^[2]

The duties included these: That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes". ^[8] That role description states, as a key responsibility: "Maintain call queues to minimum at all times". ^[5] That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned". ^[10]

That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information". ^[7] That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate". ^[6] That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces". ^[12] That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined". ^[9]

And the reporting line: That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital". ^[3] That role description names the contact for the position as "Chloe Taylor". ^[4]

II. THE HOURS, AND WHAT WAS ASKED FOR

On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight." ^[26] On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster". ^[30] That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department." ^[31] That application of 31 August 2023 records, in the same sentence, the Appellant's advocacy to become a union representative for

the switchboard department and his willingness to take on additional night shifts. [32]

The following week: On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability." [33] That email states: "I have no issues with shift work." [34] That email attached a draft roster spreadsheet prepared by the Appellant. [35]

And in September: On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved." [37] That email states: "happy to commence Full-time hours from the 16th October 2023". [38]

III. THE DATABASE IS CLOSED

On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." [39] That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." [40] That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email." [45] That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor. [43] That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back". [44]

As to restoration of access: The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024. [55]

IV. THE MANAGER'S HOURS

On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?!", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon." [71] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm." [72] Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm". [70]

V. 15 APRIL 2024: THE NEW PROCESS

On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard". [49] That email states: "This new process is effective from today." [51] That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised." [50] That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours." [52] Ms Taylor signed that email as "A/Switchboard Manager". [53]

As to consultation before it issued: The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024. [273]

VI. MAY 2024: WHAT WAS REPORTED

On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today".^[56] That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46.^[57] That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER".^[58]

Then again, five days later. On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May".^[59] That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am.^[60] That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion.^[61] The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.^[62]

The manager answered the doctors the next morning. On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "@Pan Jane Wong Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off."^[63] The interval between the email of Vivian Kwok of 3 May 2024 at 3:06 pm and the email of Ms Taylor of 9 May 2024 at 9:20 am is five days, eighteen hours and fourteen minutes.^[64]

Fifty-five minutes after that, she wrote to the operators. On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", which states: "To try and eliminate this can I please ask that all calls that switch transfer to the MASPER phone #5223 are being introduced."^[65] Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams."^[67]

Two further matters. The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.^[68] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time after 3 May 2024 and before 10:15 am on 9 May 2024.^[69]

VII. THE INTEGRATED RESPIRATORY SERVICE

On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."^[89] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.

^[90]

The reminder came five days later. On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put

through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." [91] The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am. [92] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day. [93]

Three hours after the reminder, the Appellant wrote to the manager. On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document." [94] That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024. [96] The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am. [97] The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am. [98]

The reply came that afternoon. On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical." [100] That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing." [101] Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm. [102] That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024. [103] Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024. [104]

As to that discussion, and as to any answer to the Respiratory Service: The Respondent's amended List of Documents dated 14 August 2026 does not list any document created on 20 May 2024 recording the discussion referred to in that reply. [105] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024. [106] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024. [107]

VIII. THE ROSTER, AND WHAT HUMAN RESOURCES WAS TOLD

On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts. [211] That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer". [212] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024. [213]

The Appellant wrote again. On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act." [214] That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback". [215] The Respondent's amended

statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024. ^[216]

A week later the team leader replied, and then wrote to Human Resources. On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response." ^[217] On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." ^[218]

That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate". ^[219] That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters". ^[220] That email of Ms Reese to Mr Mackenzie Pritchard of 10 May 2024 states: "Cory's roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change". ^[221]

Ten days after that, she followed up. On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." ^[222] That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline. ^[223]

IX. THE PAY

The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant. ^[183] That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance." ^[185] That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775." ^[186] That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour." ^[187] That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime." ^[188] That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended." ^[190]

Ten days later, payroll wrote again. That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay." ^[193]

The manager replied the week after. That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted." ^[195]

The employer's own system records this. That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe". ^[200] That report records the initiator of no

Attendance Variation and Allowance Claim in that period as the Appellant. [201] Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure. [210]

The pleaded position: The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner". [207] That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant". [208]

X. 15 MAY 2024

On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times". [74] That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed." [75]

The reply came that evening. On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". [76] That reply of Ms Reese asked the Appellant to retract his email. [77]

The Appellant answered within the hour. On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours."

[78]

Two days later the manager wrote to the team. On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile." [81] That email states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30." [82] That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024". [83] That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week." [84] The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm. [88]

Six days after his email, the team leader replied. On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised." [79] That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?"

[80]

XI. 17–18 MARCH 2024, AND THE REGULATOR'S OWN FINDING

The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020. [17] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time

between 17 June 2020 and 18 March 2024. ^[21] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him. ^[22]

The employer's pleaded answer: The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated". ^[226]

The Regulator's delegate recorded this. That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours." ^[258] That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break." ^[259] That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement." ^[260]

And concluded: That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature". ^[261] That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". ^[262]

XII. WHAT IS NOT ALLEGED, AND WHAT DOES NOT EXIST

The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024. ^[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024. ^[270] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024. ^[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024. ^[272]

The health service answered the notice of non-party disclosure in these terms: By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." ^[263] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." ^[265] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." ^[264]

That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested." ^[266] That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and

managed solely via email or verbally with the complainant." [267]

And as to one record: That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024." [268]

123 admitted facts are reproduced above. The Respondent admitted 298 of the 303 facts in the notice. None of the five facts not admitted appears in this document.